



U.S. Department  
of Transportation  
**Research and  
Special Programs  
Administration**

400 Seventh St., S.W.  
Washington, D.C. 20590

**JAN 14 2002**

DOT-E 11955  
(FOURTH REVISION)

**EXPIRATION DATE: December 31, 2003**

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Scott Aviation  
Lancaster, New York
2. PURPOSE AND LIMITATION:
  - a. This exemption authorizes the transportation in commerce, by motor vehicle only, of chemical oxygen generators which utilize a special protective cover as a secondary means of preventing actuation. It also serves as an approval as required by Special Provision 60. This exemption provides no relief from any Hazardous Materials Regulation (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.102(c)(1), Special Provision 60 regarding the requirement for two independent means (non-packaging) of preventing actuation, except as specified herein.
5. BASIS: This exemption is based on the application of Scott Aviation dated January 9, 2002 submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Proper Shipping Name/<br>Hazardous Materials Description                                                                                                                 | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|--------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| Oxygen generator, chemical<br>(including when contained in<br>associated equip, e.g.,<br>passenger service units (PSUs),<br>portable breathing equipment<br>(PBE), etc.) | 5.1                          | UN3356                        | II               |

7. SAFETY CONTROL MEASURES:

a. SAFETY CONTROL MEASURES: Only oxygen generators that are authorized by the Associate Administrator for Hazardous Materials Safety to be described as "Oxygen generator, chemical, 5.1, UN3356" may be transported under the terms of this exemption.

b. Testing: Each oxygen generator, without packaging, must be capable of withstanding a 1.8 meter drop onto a rigid, non-resilient, flat and horizontal surface, in the position most likely to cause damage, with no loss of contents or actuation.

c. Packaging for Transportation by Motor Vehicle:

(i) Each oxygen generator must be equipped with a ridged protective cover that fully encloses the actuating mechanism of the oxygen generator in a manner that locks in place the actuation mechanism's safety pin; and

(ii) The oxygen generator with its protective cover must be packaged in accordance with § 173.212.

8. SPECIAL PROVISIONS:

a. A person who is not a holder of this exemption who receives a package covered by this exemption may reoffer it for transportation provided no modifications or changes are made to the package and it is reoffered for transportation in conformance with this exemption and the HMR.

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b. A current copy of this exemption must be maintained at each facility from which shipments of oxygen generators are offered for transportation under the terms of this exemption.

c. Marking Requirements: Each package, and overpack if used, prepared under the provisions of paragraph 7.c. must be plainly marked with the exemption number and the following statement:

THIS PACKAGE IS NOT AUTHORIZED FOR TRANSPORTATION  
ABOARD AIRCRAFT

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: No modal specific requirements are required by this exemption.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
  - o Registration required by § 107.601 et seq., when applicable.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable.

(Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must inform the AAHMS, in writing, of any incident involving the package and shipments made under the terms of this exemption.

Issued in Washington, D.C.:



for Robert A. McGuire  
Associate Administrator for  
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Research and Special Programs Administration, Department of Transportation, Washington, D.C. 20590.  
Attention: DHM-31.

Copies of this exemption may be obtained by accessing the Hazardous Materials Safety Homepage at <http://hazmat.dot.gov/exemptions> Photo reproductions and legible reductions of this exemption are permitted. Any alteration of this exemption is prohibited.

PO: sln